

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

HOUSE BILL NO. 1990

By: Turner and George of the
House

and

Hamilton of the Senate

FLOOR SUBSTITUTE

An Act relating to Oklahoma Law on Obscenity and
Child Sexual Abuse Material; amending Section 9,
Chapter 366, O.S.L. 2024, as amended by Section 3,
Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section
20I), which relates to Class B4 felony offenses;
adding certain offense; amending 21 O.S. 2021,
Section 1021, as last amended by Section 9, Chapter
486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1021),
which relates to indecent exposure; creating felony
offense related to public urination; providing
penalties; updating statutory references; updating
statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 9, Chapter 366, O.S.L.
2024, as amended by Section 3, Chapter 187, O.S.L. 2025 (21 O.S.
Supp. 2025, Section 20I), is amended to read as follows:

Section 20I. A. ~~Upon the effective date of this act~~ On or
after January 1, 2026, Class B4 shall include the following criminal
offenses:

- 1 1. Concealing the birth or death of a child, as provided for in
2 Section 53 of ~~Title 21 of the Oklahoma Statutes~~ this title;
- 3 2. Assault, battery, or assault and battery with a sharp or
4 dangerous weapon, as provided for in Section 645 of ~~Title 21 of the~~
5 ~~Oklahoma Statutes~~ this title;
- 6 3. Robbery in the second degree, as provided for in Section 799
7 of ~~Title 21 of the Oklahoma Statutes~~ this title;
- 8 4. Neglecting a vulnerable adult, as provided for in subsection
9 A of Section 843.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;
- 10 5. Malicious harassment of another person based on that
11 person's race, color, religion, ancestry, national origin, or
12 disability, as provided for in Section 850 of ~~Title 21 of the~~
13 ~~Oklahoma Statutes~~ this title;
- 14 6. Abandonment of a child under ten (10) years of age, as
15 provided for in Section 851 of ~~Title 21 of the Oklahoma Statutes~~
16 this title;
- 17 7. Abandonment of a wife or child under fifteen (15) years of
18 age, as provided for in Section 853 of ~~Title 21 of the Oklahoma~~
19 ~~Statutes~~ this title;
- 20 8. Second or subsequent conviction for causing, aiding,
21 abetting, encouraging, soliciting, or recruiting a minor to
22 participate, join, or associate with a criminal street gang, as
23 provided for in subsection E of Section 856 of ~~Title 21 of the~~
24 ~~Oklahoma Statutes~~ this title;

1 9. Incest, as provided for in Section 885 of ~~Title 21 of the~~
2 ~~Oklahoma Statutes~~ this title;

3 10. Crime against nature, as provided for in Section 886 of
4 ~~Title 21 of the Oklahoma Statutes~~ this title;

5 11. Taking or enticing away any child under sixteen (16) years
6 of age with the intent to detain or conceal such child, as provided
7 for in Section 891 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8 12. ~~Indecent~~ Public urination in a public park or on public or
9 private school property or indecent exposure, as provided for in
10 paragraph 1 of subsection A of Section 1021 of ~~Title 21 of the~~
11 ~~Oklahoma Statutes~~ this title;

12 13. Procuring, counseling, or assisting another to commit an
13 act of indecent exposure, as provided for in paragraph 2 of
14 subsection A of Section 1021 of ~~Title 21 of the Oklahoma Statutes~~
15 this title;

16 14. Preparing, publishing, selling, distributing, downloading
17 on a computer, or exhibiting obscene material or child ~~pornography~~
18 sexual abuse material, as provided for in paragraph 3 of subsection
19 A of Section 1021 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 15. Preparing, selling, giving, loaning, distributing, or
21 exhibiting any type of obscene material or child ~~pornography~~ sexual
22 abuse material, as provided for in paragraph 4 of subsection A of
23 Section 1021 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 16. Operating, owning, or maintaining a house of prostitution,
2 soliciting, enticing, or procuring another for prostitution, or
3 transporting or assisting in the transport of another for
4 prostitution purposes, as provided for in Section 1028 of ~~Title 21~~
5 ~~of the Oklahoma Statutes~~ this title;

6 17. Engaging in prostitution or soliciting, inducing, enticing,
7 or procuring another to commit an act of prostitution, as provided
8 for in subsection A of Section 1029 of ~~Title 21 of the Oklahoma~~
9 ~~Statutes~~ this title;

10 18. Purchasing, selling, or distributing obscene material or
11 child ~~pornography~~ sexual abuse material, as provided for in Section
12 1040.13 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 19. Encouraging, offering, or soliciting sexual conduct with a
14 minor by use of technology, as provided for in Section 1040.13a of
15 ~~Title 21 of the Oklahoma Statutes~~ this title;

16 20. Promoting a pyramid promotional scheme, as provided for in
17 Section 1073 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 21. Second or subsequent offense of permitting prostitution in
19 any house, building, room, or premises under the control of such
20 person, as provided for in Section 1086 of ~~Title 21 of the Oklahoma~~
21 ~~Statutes~~ this title;

22 22. Offering or offering to secure a child under eighteen (18)
23 years of age for the purpose of prostitution, as provided for in
24

1 paragraph 1 of subsection A of Section 1087 of ~~Title 21 of the~~
2 ~~Oklahoma Statutes~~ this title;

3 23. Knowingly permitting the prostitution of a child under
4 eighteen (18) years of age by an owner, proprietor, manager,
5 conductor, or other person in any house, place, building, room, or
6 other premises under the control of such person, as provided for in
7 paragraph 2 of subsection B of Section 1087 of ~~Title 21 of the~~
8 ~~Oklahoma Statutes~~ this title;

9 24. Taking a woman against her will to compel her by force or
10 duress to marry another, as provided for in Section 1118 of ~~Title 21~~
11 ~~of the Oklahoma Statutes~~ this title;

12 25. Abduction of a child under fifteen (15) years of age for
13 the purpose of marriage, concubinage, or any crime involving moral
14 turpitude, as provided for in Section 1119 of ~~Title 21 of the~~
15 ~~Oklahoma Statutes~~ this title;

16 26. Sexual battery, as provided for in subsection B of Section
17 1123 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 27. Indecent acts with a human corpse, as provided for in
19 subsection C of Section 1123 of ~~Title 21 of the Oklahoma Statutes~~
20 this title;

21 28. Desecration of a human corpse, as provided for in Section
22 1161.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 29. Stalking within ten (10) years of a prior conviction for
2 stalking, as provided for in subsection D of Section 1173 of ~~Title~~
3 ~~21 of the Oklahoma Statutes~~ this title;

4 30. Interfering with, molesting, or assaulting firefighters in
5 the performance of their duties, as provided for in Section 1217 of
6 ~~Title 21 of the Oklahoma Statutes~~ this title;

7 31. Concealment of hazardous waste, as provided for in Section
8 1230.7 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 32. Criminal syndicalism, as provided for in Section 1261 of
10 ~~Title 21 of the Oklahoma Statutes~~ this title;

11 33. Sabotage, as provided for in Section 1262 of ~~Title 21 of~~
12 ~~the Oklahoma Statutes~~ this title;

13 34. Advocating or teaching criminal syndicalism or sabotage, as
14 provided for in Section 1263 of ~~Title 21 of the Oklahoma Statutes~~
15 this title;

16 35. Destroying, interfering, hindering, or tampering with real
17 or personal property with intent to hinder, delay, or interfere with
18 preparations for defense or for war, as provided for in Section
19 1265.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 36. Make or cause defects with any article or thing with
21 reasonable grounds to believe such article or thing will be used for
22 defense or for war, as provided for in Section 1265.3 of ~~Title 21 of~~
23 ~~the Oklahoma Statutes~~ this title;

1 37. Conspiracy to commit crimes provided in the Sabotage
2 Prevention Act, as provided for in Section 1265.5 of ~~Title 21 of the~~
3 ~~Oklahoma Statutes~~ this title;

4 38. Terrorism hoax, as provided for in Section 1268.4 of ~~Title~~
5 ~~21 of the Oklahoma Statutes~~ this title;

6 39. Engaging in terrorist activity by manufacturing, sending,
7 delivering, or possessing any toxic, noxious, or lethal substances,
8 chemical, biological, or nuclear materials, as provided for in
9 Section 1268.6 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 40. Conducting or attempting to conduct financial transactions
11 involving property related to terrorism, as provided for in Section
12 1268.7 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 41. Using a money services business or an electronic funds
14 transfer in violation of the Oklahoma Antiterrorism Act, as provided
15 for in Section 1268.8 of ~~Title 21 of the Oklahoma Statutes~~ this
16 title;

17 42. Possession of a firearm by a convicted felon, as provided
18 for in subsection A of Section 1283 of ~~Title 21 of the Oklahoma~~
19 ~~Statutes~~ this title;

20 43. Possession of a firearm by a person serving a term of
21 probation for a felony or who is subject to supervision, probation,
22 parole, or inmate status, as provided for in subsection C of Section
23 1283 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 44. Possession of a firearm by a person previously adjudicated
2 as a delinquent child or youthful offender, as provided for in
3 subsection D of Section 1283 of ~~Title 21 of the Oklahoma Statutes~~
4 this title;

5 45. Possession of a firearm by a person who is an alien
6 illegally or unlawfully in the United States, as provided for in
7 subsection E of Section 1283 of ~~Title 21 of the Oklahoma Statutes~~
8 this title;

9 46. Allowing a convicted felon, adjudicated delinquent, or
10 youthful offender to possess a pistol authorized for use under the
11 Oklahoma Self-Defense Act by a person who has a handgun license, as
12 provided for in subsection F of Section 1283 of ~~Title 21 of the~~
13 ~~Oklahoma Statutes~~ this title;

14 47. Use of a firearm or other offensive weapon while committing
15 a felony, as provided for in Section 1287 of ~~Title 21 of the~~
16 ~~Oklahoma Statutes~~ this title;

17 48. Pointing a firearm, as provided for in Section 1289.16 of
18 ~~Title 21 of the Oklahoma Statutes~~ this title;

19 49. Manufacturing, importing, or selling restricted bullets, as
20 provided for in Section 1289.20 of ~~Title 21 of the Oklahoma Statutes~~
21 this title;

22 50. Possessing, carrying, or using or attempting to use against
23 another person any restricted bullets, as provided for in Section
24 1289.21 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 51. Committing a felony while wearing body armor, as provided
2 for in Section 1289.26 of ~~Title 21 of the Oklahoma Statutes~~ this
3 title;

4 52. Carrying a stolen handgun, as provided for in subsection B
5 of Section 1290.21 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 53. Incitement to riot, as provided for in Section 1320.2 of
7 ~~Title 21 of the Oklahoma Statutes~~ this title;

8 54. Malicious destruction or damage to real or personal
9 property or malicious injury to another during a state of emergency,
10 as provided for in Section 1321.7 of ~~Title 21 of the Oklahoma~~
11 ~~Statutes~~ this title;

12 55. Participating in a riot during a state of emergency, as
13 provided for in subsection A of Section 1321.8 of ~~Title 21 of the~~
14 ~~Oklahoma Statutes~~ this title;

15 56. Causing an innocent or irresponsible person to engage in a
16 riot, as provided for in subsection E of Section 1321.8 of ~~Title 21~~
17 ~~of the Oklahoma Statutes~~ this title;

18 57. Possession of explosives by a convicted felon, as provided
19 for in Section 1368 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 58. Attempting, conspiring, or endeavoring to perform an act of
21 violence, as provided for in subsection A of Section 1378 of ~~Title~~
22 ~~21 of the Oklahoma Statutes~~ this title;

23 59. Devising a plan, scheme, or program of action to cause
24 serious bodily harm or death of another person, as provided for in

1 subsection C of Section 1378 of ~~Title 21 of the Oklahoma Statutes~~
2 this title;

3 60. Endangering any human life including emergency service
4 personnel while committing an act of arson, as provided for in
5 Section 1405 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 61. Intimidating, threatening, assaulting, or battering any
7 driver, attendant, guard, or passenger of a bus with intent to seize
8 the bus, as provided for in subsection B of Section 1903 of ~~Title 21~~
9 ~~of the Oklahoma Statutes~~ this title;

10 62. Discharging any firearm into or within any bus, terminal,
11 or other transportation facility, as provided for in subsection D of
12 Section 1903 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 63. Leaving the scene of a vehicle accident that resulted in
14 the death of a person, as provided for in Section 10-102.1 of Title
15 47 of the Oklahoma Statutes;

16 64. Second felony conviction of driving under the influence of
17 alcohol or other intoxicating substance, as provided for in
18 paragraph 3 of subsection C of Section 11-902 of Title 47 of the
19 Oklahoma Statutes;

20 65. Causing an accident resulting in the death of another
21 person while operating a vehicle without a valid driver license, as
22 provided for in subsection C of Section 11-905 of Title 47 of the
23 Oklahoma Statutes;

1 66. Throwing or dropping any substance at a moving vehicle, as
2 provided for in subsection A of Section 11-1111 of Title 47 of the
3 Oklahoma Statutes;

4 67. Throwing or dropping any object from a bridge or overpass
5 with intent to damage property or injure a person, as provided for
6 in subsection B of Section 11-1111 of Title 47 of the Oklahoma
7 Statutes;

8 68. Manufacturing, selling, transferring, or furnishing a
9 precursor substance to another with knowledge the recipient will use
10 such substance to unlawfully manufacture a controlled substance, as
11 provided for in subsection C of Section 2-328 of Title 63 of the
12 Oklahoma Statutes;

13 69. Second or subsequent conviction for manufacturing, selling,
14 transferring, furnishing, or receiving a precursor substance, as
15 provided for in subsection D of Section 2-328 of Title 63 of the
16 Oklahoma Statutes;

17 70. Purchasing, obtaining, possessing, manufacturing, selling,
18 or transferring a precursor substance without a permit or making a
19 false statement in an application or report, as provided for in
20 subsection E of Section 2-328 of Title 63 of the Oklahoma Statutes;

21 71. Selling, transferring, distributing, or dispensing any
22 product containing ephedrine, pseudoephedrine, or
23 phenylpropanolamine to another with knowledge the purchaser will use
24 such product as a precursor to manufacture methamphetamine or

1 another controlled illegal substance, as provided for in Section 2-
2 333 of Title 63 of the Oklahoma Statutes;

3 72. Cultivating, producing, or knowingly permitting the
4 cultivation or production of any species of plants from which
5 controlled dangerous substances may be derived, as provided for in
6 subsection B of Section 2-509 of Title 63 of the Oklahoma Statutes;

7 73. Manufacturing or attempting to manufacture any controlled
8 dangerous substance by cooking, burning, or extracting and
9 converting marihuana or marihuana oil into hashish, hashish oil, or
10 hashish powder, as provided for in subsection H of Section 2-509 of
11 Title 63 of the Oklahoma Statutes;

12 74. Purchasing or possessing any quantity of pseudoephedrine by
13 a person who is subject to the Oklahoma Methamphetamine Offender
14 Registry Act, as provided for in subsection B of Section 2-701 of
15 Title 63 of the Oklahoma Statutes; and

16 75. Using an explosive or blasting agent with the intent to
17 kill, injure, or intimidate a person or unlawfully damage real or
18 personal property, as provided for in subsection B of Section 124.8
19 of Title 63 of the Oklahoma Statutes.

20 B. Any person convicted of a Class B4 criminal offense set
21 forth in this section shall be punished in accordance with the
22 corresponding penalties provided for in the Oklahoma Statutes.

1 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1021, as
2 last amended by Section 9, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
3 2025, Section 1021), is amended to read as follows:

4 Section 1021. A. ~~Every~~ Any person who willfully and knowingly
5 either:

6 1. Lewdly exposes his or her person or genitals in any public
7 place, or in any place where there are present other persons to be
8 offended or annoyed thereby; provided, however, for purposes of this
9 section, a person alleged to have committed an act of public
10 urination shall be prosecuted pursuant to Section 22 of this title
11 unless such act was accompanied with another act that violates
12 paragraphs 2 through 4 of this subsection and shall not be subject
13 to registration under the Sex Offenders Registration Act. However,
14 if any person commits an act of public urination in a public park or
15 on public or private school property where there are present other
16 persons to be offended or annoyed thereby, such person shall, upon
17 conviction, be guilty of a Class B4 felony offense punishable as
18 provided in this subsection and shall be subject to registration
19 under the Sex Offenders Registration Act;

20 2. Procures, counsels, or assists any person to expose such
21 person, or to make any other exhibition of such person to public
22 view or to the view of any number of persons, for the purpose of
23 sexual stimulation of the viewer;
24

1 3. Writes, composes, stereotypes, prints, photographs, designs,
2 copies, draws, engraves, paints, molds, cuts, or otherwise prepares,
3 publishes, sells, distributes, keeps for sale, knowingly downloads
4 on a computer, or exhibits any obscene material or child sexual
5 abuse material; or

6 4. Makes, prepares, cuts, sells, gives, loans, distributes,
7 keeps for sale, or exhibits any disc record, metal, plastic, or wax,
8 wire or tape recording, or any type of obscene material or child
9 sexual abuse material,

10 shall be guilty, upon conviction, of a Class B4 felony offense and
11 shall be punished by the imposition of a fine ~~of~~ not less than Five
12 Hundred Dollars (\$500.00) nor more than Twenty Thousand Dollars
13 (\$20,000.00) or by imprisonment for not less than thirty (30) days
14 nor more than ten (10) years, or by both such fine and imprisonment.

15 B. Every person who:

16 1. Willfully solicits or aids a minor child to perform; or

17 2. Shows, exhibits, loans, or distributes to a minor child any
18 obscene material or child sexual abuse material for the purpose of
19 inducing ~~said~~ the minor to participate in, any act specified in
20 paragraphs 1, 2, 3, or 4 of subsection A of this section,
21 shall be guilty of a Class A1 felony offense, upon conviction, and
22 shall be punished by imprisonment in the custody of the Department
23 of Corrections for not less than ten (10) years nor more than thirty
24 (30) years, except when the minor child is under twelve (12) years

1 of age at the time the offense is committed, and in such case the
2 person shall, upon conviction, be punished by imprisonment in the
3 custody of the Department of Corrections for not less than twenty-
4 five (25) years.

5 C. Persons convicted under this section shall not be eligible
6 for a deferred sentence.

7 D. Except for persons sentenced to life or life without parole,
8 any person sentenced to imprisonment for two (2) years or more for a
9 violation of this section shall be required to serve a term of post-
10 imprisonment supervision pursuant to subparagraph f of paragraph 1
11 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes
12 under conditions determined by the Department of Corrections. The
13 jury shall be advised that the mandatory post-imprisonment
14 supervision shall be in addition to the actual imprisonment.

15 E. For purposes of this section, "downloading on a computer"
16 means electronically transferring an electronic file from one
17 computer or electronic media to another computer or electronic
18 media.

19 SECTION 3. This act shall become effective November 1, 2026.
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